

25VECV04737 25VECV04737

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-07-02

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Ebrahimpour v Ibarra

The

complaint alleges that plaintiff was involved in a motor vehicle collision with defendant Ibarra on 8/24/2023. Plaintiff then filed a "First Amendment to Complaint" without court approval after defendant Ibarra had already appeared in the case. While it is called an amendment, it clearly is an amended complaint as it adds a new cause of action against a new defendant, Farmers for an incident occurring on 9/10/2023. This alleges a claim for "negligence" against Farmers.

These are

two different claims arising out of two different collisions.

Plaintiff

asserts because it added Farmers on [ostensibly] a UM claim for an incident on 9/10/2023 to a lawsuit against defendant Ibarra for an incident on 8/24/2026, it somehow exempts arbitration. He is incorrect. While there may be overlapping injuries, this is not the deciding factor. The statute specifically states that the matters need to arise from the same transaction or series of transactions. This is not the case here. There were two separate and distinct collisions unrelated to each other.

The court

severs the second cause of action against Farmers and orders it to binding UM/UIM arbitration pursuant to the contract.

Because the claims against defendant Ibarra predate the second UM/UIM claim, the court stays the arbitration pending resolution of the civil action against defendant Ibarra.

The court reminds the parties on the Ibarra case that trial is set for 10/14/2026 at 8:30 a.m. and the FSC is set for 10/2/2026. This will be one year from the date the defendant Ibarra appeared in the case. Also, this is also a reminder that the parties were ordered to MANDATORY MVP MEDIATION with a cutoff date of 60 days before trial and a Joint Post Medication Report due no later than 8/14/2026. The court will not extend these dates and the parties must be ready for trial as scheduled. If you have not done so, you shall contact the court's ADR office to schedule the MVP mediation FORTHWITH. Please review the court's order of 12/18/2025 for the court's FSC and Trial orders.

The demurrer and motion to strike are off calendar as moot.

It is so ordered, clerk to give notice.